

UPSC INDIAN POLITY

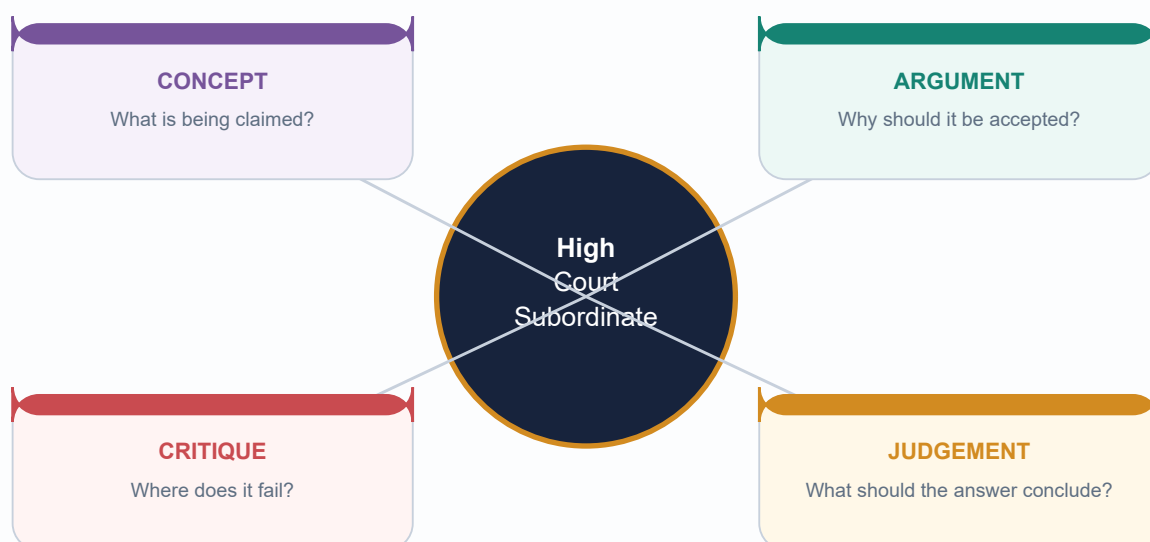
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: High-Court.md + 21_High-Court-and-Subordinate-Courts.md

Learning cards: 20



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 34–36.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ book · □□ inference · □ current. *Depth version: advanced/21_High-Court-and-Subordinate-Courts.md.*

MUST-KNOW FACTS

1. greater than book · □□ inference · □ current. *Depth version: advanced/21_High-Court-and-Subordinate-Courts.md.*

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Value
Articles	214–231 (HC); 233–237 (subordinate)
No. of HCs	□ 25 (some common to 2+ states/UTs)
HC judge retires	□ 62 (SC judge = 65)
SC collegium stage for HC appointment	CJI + 2 seniormost SC judges
Writ article	□ Art 226 (wider than SC's Art 32)

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Snapshot

HIGH

Foundation • Core idea • Part 1

GS-II Indian
Polity

INTRO & ORIGIN

□ The **High Court** is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has **one integrated judiciary**: SC → HCs → subordinate courts. The **7th Amdt (1956)** allows a **common HC** for two or more states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea



Dimension 1 □ The High Court is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has one integrated judiciary: SC →	Dimension 2 greater than □ HC writ power (Art 226) greater than SC (Art 32): HC issues writs for FRs AND any other purpose. Chandra
Dimension 3 greater than Kumar (1997): HC writ jurisdiction = basic structure.	Dimension 4 greater than □ Qualification: citizen + 10 yrs judicial office OR 10 yrs HC advocate (no "distinguished jurist")

STATIC THEORY

- greater than □ **HC writ power (Art 226) greater than SC (Art 32)**: HC issues writs for FRs **AND any other purpose**. *Chandra
- greater than Kumar (1997): HC writ jurisdiction = **basic structure**.*
- greater than □ **Qualification**: citizen + **10 yrs judicial office OR 10 yrs HC advocate** (no "distinguished jurist")
- greater than option, unlike SC).
- greater than □ **Two stages**: the HC Chief Justice initiates a recommendation after consulting
- greater than two seniormost HC colleagues; the Supreme Court collegium then considers it. HC-judge

MEMORY HOOK

greater than HC writ power (Art 226) greater than SC (Art 32): HC issues writs for FRs AND any other purpose. *Chandra | greater than Qualification: citizen + 10 yrs judicial office OR 10 yrs HC advocate (no "distinguished jurist" | greater than Two stages: the HC Chief Justice initiates a recommendation after consulting

MUST-KNOW FACTS

1. The **High Court** is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has **one integrated judiciary**: SC → HCs → subordinate courts. The **7th Amdt (1956)** allows a **common HC** for two or more states.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Core idea · Part 2

GS-II Indian
Polity

INTRO & ORIGIN

greater than transfers use a broader consultation process.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Subordinate courts (3 tiers)

GS-II Indian
Polity

INTRO & ORIGIN

□ **District Judge = Sessions Judge** (top) → Subordinate Judge / Chief Judicial Magistrate → Munsiff / Judicial Magistrate. District judges appointed by the **Governor in consultation with the HC** (Art 233). A **death sentence needs HC confirmation**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **District Judge = Sessions Judge** (top) → Subordinate Judge / Chief Judicial Magistrate → Munsiff / Judicial Magistrate. District judges appointed by the **Governor in consultation with the HC** (Art 233). A **death sentence needs HC confirmation**.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Subordinate courts (3 tiers)

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

□ HC judge takes oath before the **Governor**; can be **transferred** to another HC.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1

- HC judge takes oath before the Governor; can be transferred to another HC.

Dimension 2

- HC has supervisory jurisdiction (Art 227) over all courts/tribunals (except military).

Dimension 3

- NALSA (Legal Services Authorities Act 1987) → free legal aid + Lok Adalats (Art 39A).

STATIC THEORY

- ☐ HC has **supervisory jurisdiction (Art 227)** over all courts/tribunals (except military).
- ☐ **NALSA** (Legal Services Authorities Act 1987) → free legal aid + **Lok Adalats** (Art 39A).

MUST-KNOW FACTS

1. HC judge takes oath before the **Governor**; can be **transferred** to another HC.
2. HC has **supervisory jurisdiction (Art 227)** over all courts/tribunals (except military).
3. **NALSA** (Legal Services Authorities Act 1987) → free legal aid + **Lok Adalats** (Art 39A).

MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH**Foundation • ☐ Current link****GS-II** Indian Polity**NEWS TRIGGER**

☐ ☐ ☐ **Case pendency and HC vacancies** (part of India's ~5 crore pending cases) keep judicial reforms — NALSA/Lok Adalats, e-Courts, All India Judicial Service — in the news. ☐ ☐ Full jurisdiction, tiers, traps & Mains angles: [advanced/21_High-Court-and-Subordinate-Courts.md](#)

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → ☐ Current link

HIGH**Advanced • Core Foundation****GS-II** Indian Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 34–36 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = current affairs.	Dimension 4 greater than Companion: basic/High-Court.md.

STATIC THEORY

- greater than **Grounded in**: Indian Polity by M. Laxmikant, Ch. 34–36 (direct check of the local Sixth Revised Edition PDF).
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- greater than *Companion*: basic/High-Court.md.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — THE HIGH COURT (Art 214–231)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE HIGH COURT (Art 214–231).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART A — THE HIGH COURT (Art 214–231)

HIGH

Advanced · Organisation □

GS-II Indian Polity

INTRO & ORIGIN

□ In the **integrated judiciary**, the HC sits below the SC, above subordinate courts. First HCs at **Calcutta, Bombay, Madras (1862)**, Allahabad (1866). **Art 214** — an HC for each state, but the **7th Amdt (1956)** allows a **common HC for two+ states / states + UT**. At present **25 High Courts** (jurisdiction co-terminus with state territory). **Articles 214–231 (Part VI)**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Organisation □

HIGH**Advanced · Composition & appointment** □GS-II Indian
Polity**INTRO & ORIGIN**

□ CJ + judges **as the President deems necessary** (strength not fixed). Appointed by the **President** — CJ after consulting **CJI + State Governor**; other judges also after consulting the **HC Chief Justice**. At the originating HC, the Chief Justice consults the **two seniormost HC colleagues**. At the Supreme Court stage, the collegium for an HC appointment is **CJI + 2 seniormost SC judges**; HC-judge transfers require broader consultation including four senior SC judges (Third Judges Case, 1998). NJAC was struck down in 2015.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Composition & appointment □

HIGH**Advanced · Qualifications, tenure, removal** □GS-II Indian
Polity**INTRO & ORIGIN**

□ Citizen + **10 yrs judicial office OR 10 yrs HC advocate** (NO "distinguished jurist" option, unlike SC; no minimum age). Oath before the **Governor**. Retires at **62** (SC = 65). Removal = **same as SC** (special majority, Judges Enquiry Act 1968). Also vacates on elevation to SC or **transfer to another HC**. □□ A judge can be **transferred** by the President (after consulting CJI).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Qualifications, tenure, removal ☐

HIGH**Advanced · Jurisdiction** ☐

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Scope
☐ Original	admiralty, contempt, election disputes, FR enforcement ; 4 HCs (Cal/Bom/Mad/Del) have original civil jurisdiction
☐ Writ (Art 226)	5 writs — for FRs AND "any other purpose" → wider than SC's Art 32 ; concurrent with SC. *Chandra Kumar (1997): HC writ power is part of basic structure , cannot be excluded*
☐ Appellate	civil & criminal appeals from subordinate courts; death sentence needs HC confirmation
☐ Supervisory (Art 227)	superintendence over all courts/tribunals in territory (except military); can be suo motu
☐ Control over subordinate courts	consulted on district-judge appointments; withdraws cases involving constitutional questions
☐ Court of Record (Art 215)	precedents + contempt power
☐ Judicial Review	strike down unconstitutional laws/orders

MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → Jurisdiction ☐

HIGH

Advanced · PART B — SUBORDINATE COURTS (Art 233–237) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Tier	Civil side	Criminal side
□ Top	District Judge	Sessions Judge (same person)
□ Middle	Subordinate Judge	Chief Judicial Magistrate (≤7 yrs)
□ Lowest	Munsiff	Judicial Magistrate (≤3 yrs)

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART B — SUBORDINATE COURTS (Art 233–237) □

HIGH

Advanced · PART B — SUBORDINATE COURTS (Art 233–237) □

GS-II Indian Polity

INTRO & ORIGIN

□ Structure laid down by **states**; broadly **three tiers** below the HC:

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ **District Judge** — highest judicial authority in the district; original + appellate (civil & criminal); as **Sessions Judge** can award **capital punishment** (subject to **HC confirmation**). **Art 233** — district judges appointed by the **Governor in consultation with the HC**. Metro cities: **City Civil Courts & Metropolitan Magistrates**; also **Small Causes Courts, Nyaya Panchayats/Gram Kutchery**.

MUST-KNOW FACTS

1. Structure laid down by **states**; broadly **three tiers** below the HC:

2. **District Judge** — highest judicial authority in the district; original + appellate (civil & criminal); as **Sessions Judge** can award **capital punishment** (subject to **HC confirmation**). **Art 233** — district judges appointed by the **Governor in consultation with the HC**. Metro cities: **City Civil Courts & Metropolitan Magistrates**; also **Small Causes Courts, Nyaya Panchayats/Gram Kutchery**.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART B — SUBORDINATE COURTS (Art 233–237) □

HIGH

Advanced • NALSA (Art 39A) □

GS-II Indian
Polity

INTRO & ORIGIN

□ **National Legal Services Authority** — under the **Legal Services Authorities Act 1987** (in force **1995**); free legal aid + **Lok Adalats**; tiered NALSA → SLSA → DLSA → Taluk committees. Eligible: women, children, SC/ST, disabled, custody, disaster victims, income ≤ ₹1 lakh, etc.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** → NALSA (Art 39A) □

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: There are 25 HCs, one per state

CORRECT: 25 HCs but some are **common** to 2+ states/UTs (not 1-per-state).

WRONG: A "distinguished jurist" can be an HC judge

CORRECT: **only for the SC**, not HC.

WRONG: HC judge retires at 65

CORRECT: **62** (SC = 65).

WRONG: HC writ jurisdiction is narrower than SC's

CORRECT: **wider** (Art 226 covers FRs **and** other purposes).

WRONG: HC judge takes oath before the President

CORRECT: before the **Governor**.

WRONG: District judge is appointed by the HC

CORRECT: by the **Governor in consultation with the HC** (Art 233).

WRONG: Sessions Judge can execute a death sentence directly

CORRECT: needs **HC confirmation**.

MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → UPSC Traps

HIGH**Advanced • CA hooks**GS-II Indian
Polity**NEWS TRIGGER**

□ □ □ **Collegium friction & HC vacancies/pendency** — a large share of India's ~5 crore pending cases is in HCs; recurring reform debate (e.g. All India Judicial Service, tribunalisation). □ □ □ **Lok Adalats & NALSA** drives for pendency reduction; e-Courts and virtual hearings.

INTRO & ORIGIN

□ □ □ Debates on **HC judges' transfers** and elevation transparency.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → □ CA hooks

HIGH**Advanced • Mains angles**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

*Should India create an **All India Judicial Service** for subordinate judiciary recruitment? Discuss. The High Court's writ jurisdiction as a guardian of rights — analyse Art 226 vs Art 32. Judicial pendency: causes and reforms (NALSA, Lok Adalats, fast-track courts, e-Courts).*

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Mains angles

HIGH**Advanced • Verified PYQ application**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2024 GS-II Q2 (10 marks, 150 words):** “Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?” *Route: statutory conciliation/compromise forum vs consensual private adjudication; Lok Adalat may settle compoundable criminal matters but not non-compoundable offences; arbitration concerns arbitrable civil/commercial disputes, not criminal prosecution.*

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — **ADVANCED / COMPLETE** →
Verified PYQ application

End of Register Notes — UPSC Agent / Copilot CLI